

‘were in the Custody of such Persons. Men who had lost their
 ‘Innocence, could not preserve their courage : nor could we look,
 ‘that they who had so visibly undone us, themselves should have the
 ‘vertue or credit, to rescue us from the oppression of other men.
 ‘’Twas said by one, who alwayes spoke excellently, That the twelve
 ‘Judges were like the twelve Lyons under the Throne of *Solo-mo-n* :
 ‘under the Throne in obedience, but yet Lyons. Your Lordships
 ‘shall this day hear of Six, who (be they what they will be else)
 ‘were no Lyons, who upon Vulgar fears delivered up the precious
 ‘Forts they were trusted with, almost without assault ; and in a
 ‘tame easie trance of Flattery and Servitude, lost and forfeited
 ‘(shamefully forfeited) that reputation, awe and reverence, which
 ‘the Wisdom, Courage, and Gravity of their Venerable Prede-
 ‘cessors had contracted and fastened to the Places they now hold :
 ‘And even rendred that Study and Profession (which in all Ages
 ‘hath been, and I hope now shall be of an honourable estimation)
 ‘so contemptible and vile, that had not this blessed day come, all
 ‘men would have had that quarrell to the Law it self, which *Ma-
 ‘rius* had to the Greek Tongue, who thought it a Mockery, for a
 ‘man to learn that Language, the Masters whereof lived in bondage
 ‘under others. And I appeal to these unhappy Gentlemen them-
 ‘selves, with what a strange negligence, scorn and indignation the
 ‘Faces of all men, even of the meanest, have been directed towards
 ‘them, since (to call it no worse) that Fatal Declension of their
 ‘understandings in those Judgements, of which they stand here
 ‘charged before your Lordships. But, *my Lords*, the work of this
 ‘day is the greatest instance of a growing and thriving Common-
 ‘wealth too : and is as the dawning of a fair and lasting day of
 ‘happines to this Kingdom : ’tis in your Lordships Power (and I
 ‘am sure ’tis in your Lordships Will) to restore the dejected broken
 ‘people of this Island to their former Joy and Security, the succes-
 ‘sors of these men to their old Priviledge and Veneration, & *se-
 ‘pultas prope leges revocare.*

‘As for that Presumptuous Decree against Mr. *Rolls* and others,
 ‘and in truth, whatsoever Gloss they put upon it, it is no other than
 ‘a plain Grant of the Subsidy of *Tonnage* and *Poundage* to his Majesty
 ‘upon all Merchandize. After their Goods seized for Non-Payment
 ‘of that pretended Duty the Proprietors brought *Replevins* (which
 ‘is the Natural and Genuine Remedy appointed by Law in case of
 ‘Property, and grounded upon Property) the Court awards an
 ‘Injunction to stay these *Replevins*, the Goods were in the Kings
 ‘Possession, and no *Replevin* would lye against the King.

‘Truly, *My Lords*, The Injustice here is not so scandalous as the
 ‘Fraud : we all know, a *Replevin* (as in no other Suit) lyes against
 ‘the King, if the Goods be in his own hands.

‘Here they found a Right, a known and unquestionable Right ;
 ‘yet instead of assisting, took away the Remedy to preserve that
 ‘Right. What shall we call these Judges?

‘*My Lords*, In this Argument I am not willing to say much : ’tis
 ‘enough that your Lordships know, *Tonnage* and *Poundage* is not a
 ‘Duty to the Crown, but a Subsidy, and so granted in *subsidiūm* some

*Tonnage and
 Poundage.*